

SENATE No. 1158

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance state anti-trust powers and enforcement.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

SENATE No. 1158

By Mr. Lewis (by request), a petition (accompanied by bill, Senate, No. 1158) of Vincent Dixon, for legislation to enhance state anti-trust powers and enforcement. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1034 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance state anti-trust powers and enforcement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Massachusetts General Laws are hereby amended by inserting the
2 following new chapter:

3 An Act to Enhance State Anti-Trust Powers and Enforcement.

4 1.) Sound, and honest economic, and business behavior, benefit the economy of the
5 Commonwealth, its businesses, organizations, and the individual consumers of Massachusetts.
6 Therefore, this Statute sets standards, requiring, urging, and providing for the more robust usage,
7 and enforcement of anti-trust powers, presently held by all of the legal authorities of
8 Massachusetts, including the Constitutional Officers, and the Judicial Authorities.

9 2.) While Federal Anti-Trust powers are important, and valuable, for various reasons, the
10 various authorities of The United States, from time to time, lack the resources, or have other

11 more important focuses, regarding various business activities, and problems. When this is true,
12 and even under normal circumstances, situations present themselves, in the view of state
13 authorities, that can, and/or should, be monitored, and acted upon by the Commonwealth.

14 3.) In doing so, the sound, and honest economy, and benefit to consumers of
15 Massachusetts, can be improved.

16 4.) Therefore, this legislation provides that the Attorney General of Massachusetts, make
17 public formal recommendations, in an annual Economic Enforcement Report, as to what
18 measures relating to anti-trust, need revitalization, streamlined regulation, and consumer-friendly
19 enforcement in terms of sound business practices in our Commonwealth.

20 5.) Particular attention in this Annual Report, shall be given to monitoring, and
21 enforcement relating to large so-called chain stores, across all fields, for their maintenance of
22 honest pricing, and sales promotion processes.

23 6.) Sound regulation of business practices, shall also be reviewed, by this Annual Report;
24 with particular attention to the ability of small, and medium-sized businesses, being able to
25 compete fairly, and honestly, in successful ways.